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Confidential/Registered

Date

December 11, 2023

Our reference

Contact person

Subject

Decision to impose an administrative fine on Uber

Dear ,

The Dutch Data Protection Authority (hereinafter: AP) is of the opinion that Uber Technologies Inc. and Uber B.V. (hereinafter collectively: Uber) have committed several violations of the General Data Protection Regulation (GDPR) concerning transparency. These include the exclusive provision of guidance notes to drivers in the English language and the failure to provide information in a readily accessible form in response to a request for access, which is in violation of Article 12, paragraph 1, of the GDPR. Additionally, the digital form through which drivers can exercise their right of access and data portability is not easily accessible enough in the driver app, which contravenes Article 12, paragraph 2, of the GDPR. Furthermore, the information regarding retention periods in the privacy statement is not sufficiently specific (Article 13, paragraph 2, introductory part and under a, and Article 15, paragraph 1, under d, of the GDPR), and the information regarding data transfers is not complete and meaningful enough (Article 13, paragraph 1, introductory part and under f, of the GDPR). Finally, Uber has not explicitly mentioned the right to data portability in the privacy statement (Article 13, paragraph 2, under b, of the GDPR).

For these violations, the AP imposes a total administrative fine of €10,000,000.00 on Uber Technologies Inc. and Uber B.V. jointly.

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1. Background of the investigation

Uber is an internationally operating company that acts as an intermediary between taxi drivers and passengers. Passengers use the general Uber App (for mobile phones) or possibly a browser, while drivers use the Uber Driver App (hereinafter: driver app).

Creating an account for drivers is mandatory for using the driver app. Drivers are rated by their customers after a ride and are paid by Uber for the services provided.

Uber has established a digital form, accessible via the Uber website and the driver app, which drivers can use to submit requests for access and data portability regarding their personal data. Uber has also prepared a privacy statement, which provides insight into the processing of personal data by Uber.

On June 12, 2020, the Commission Nationale de l'Informatique et des Libertés (CNIL) received a complaint from the French non-governmental organization Ligue Des Droits De L'homme Et Du Citoyen (LDH) on behalf of 21 Uber drivers. Over time, an additional 151 Uber drivers joined the complaint, resulting in a submission on behalf of 172 complainants. On September 29, 2020, the LDH submitted a supplementary complaint to the CNIL. The complaints were forwarded by the CNIL to the AP, after which the International Research department of the AP initiated an investigation and

prepared a report.

2. Findings of the investigation report

The report identifies 5 violations concerning transparency, namely:

- 1) The digital form through which a request for access can be made is not easily accessible enough in the driver app (Article 12, paragraph 2, GDPR).
- 2) In response to a request for access, Uber provides a copy of the personal data in a form that is not easily accessible, and the guidance notes provided are not in a language understandable to (French) drivers (English) (Article 12, paragraph 1, GDPR).
- 3) Uber does not provide sufficiently specific information about retention periods in the privacy statement (Article 13, paragraph 2, a, GDPR and Article 15, paragraph 1, a and d GDPR).
- 4) Uber does not specifically mention the names of the countries to which data transfers occur in the privacy statement, nor the specific protective measures (Article 13, paragraph 1, f, GDPR and Article 15, paragraph 2, GDPR).
- 5) Uber does not explicitly mention the right to data portability in its privacy statement (Article 13, paragraph 2, b, GDPR).

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The International Research Department has concluded in the research report that Uber has committed the above violations from May 25, 2018, until the date of the establishment of the research report (June 30, 2022). On July 8, 2022, the research report and the intention to enforce were sent to Uber. Uber provided its written comments on the research report and the intention to enforce in a letter dated September 15, 2022. On January 12, 2023, Uber elaborated on its comments orally. A report of this has been made (attached to this decision).

In accordance with Article 60 GDPR, the AP has submitted the draft decision to the relevant supervisory authorities.

3. Legal Framework

The AP refers to the attachment to this decision, which contains the legal framework.

4. Assessment

4.1 Data Controller and Competence of the AP

Uber B.V. is the Dutch establishment of Uber, while Uber Technologies Inc. is based in the United States and is the parent company of, among others, Uber B.V. Together, Uber B.V. and Uber Technologies Inc. determine the purpose and means for the processing of personal data of Uber drivers in the European Economic Area (EEA). The (French) drivers have an agreement with Uber B.V. For requests regarding the rights of data subjects, the rough division is that Uber B.V. is responsible for assessing such requests and that Uber Technologies Inc. provides the technical means and the data. Uber Technologies Inc. is also the publisher of the driver app.

In Uber's privacy statement, Uber B.V. and Uber Technologies Inc. are also designated as joint data controllers. The joint data controller status has not been contested by Uber.

Uber offers its services in multiple EU member states and processes personal data for these services. This means that data subjects in more than one member state experience significant consequences from the processing of personal data by Uber. This constitutes cross-border processing (Article 4, introductory phrase and under 23, sub a and b, GDPR). Since Uber's central administration in the EEA is located at Uber B.V., Uber B.V. is designated as the main establishment within the meaning of Article 4, introductory phrase and under 16, GDPR. The AP is competent to act as the lead supervisory authority (Article 56, first paragraph, GDPR).

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4.2 Accessibility of the Request for Access Form

The research report established that the digital form through which drivers can exercise their right to access and data portability is not easily accessible enough in the driver app because too many steps must be taken and the wording of the steps does not intuitively lead to the form. As a result, Uber does not sufficiently facilitate the exercise of the aforementioned rights of data subjects and violates Article 12, second paragraph, GDPR.

Uber's Comments

Uber states that neither the GDPR, legislative history, case law, applicable guidelines, nor authoritative commentary specifies how many actions a data subject may take to make a request for access or transfer. This also applies to the AP's argument that a data subject should be able to reach a page intuitively. Uber has a certain degree of discretion under Article 12, second paragraph, GDPR, to determine how it facilitates the right to access and data portability. The AP further introduces a new standard without justification by stating that the form must be "sufficiently easy" to find, according to Uber.

In the guidelines, the EDPB explains the transparency obligations in such a way that they can be met by employing a "layered information structure." Drivers are therefore expected to go through multiple steps. This is also the standard in consumer law. Drivers use the menu in the app every day, and a reasonable and average driver should be able to find the form without any difficulty, even if it requires six clicks. Additionally, Uber points out that the driver app is designed for a smartphone with a small screen. Uber aims to prevent drivers from having to scroll through long menus when using the app and has therefore opted for menu paths.

Uber then states that the AP does recognize that Uber offers multiple ways to submit a request for access or transfer, but the AP has incorrectly only considered the methods available in the driver app. The AP has also incorrectly disregarded the route that redirects through the driver app to the privacy statement on the website. Uber disputes the number of steps counted by the AP to reach the form: Uber uses a different count and arrives at a lower number of steps.

Regarding the wording of the various steps, Uber states that "more obvious" is not an existing criterion in the GDPR and that it is subjective which route is the most obvious. Elevating the form under a heading "privacy" would detract from other menu options. Since February 2022, Uber has made adjustments to the routes in the driver app to the form, but these adjustments were not included in the research report.

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Assessment

In the version of the driver app assessed in the report, the following steps must be followed, schematically represented, to reach the form to submit a request for access or data portability: Menu > Help > Account and app issues > Legal concerns > Request your personal Uber data > Submit a privacy inquiry > log in via "Sign in to get help" or "Submit a privacy inquiry without an Uber account," after which the driver arrives at the form (route 1). The report also describes another route that opens the privacy statement on Uber's website via a link, where a link can also be clicked to "submit a privacy inquiry" (route 2). This route has been further disregarded in the report because Uber must facilitate

the drivers in exercising their rights at least through the driver app (and in route 2, the app transitions to Uber's website).

The investigation has shown that the primary interaction between Uber and the drivers takes place via the driver app. For this reason, the AP is of the opinion that at least in the driver app, drivers must be facilitated in exercising their rights in the sense of Article 12, paragraph 2, GDPR. In accordance with Recital 59 of the GDPR, arrangements must be in place to enable the data subject to exercise their rights more easily. This entails that the arrangements must align with the ways in which interactions with the data subjects occur. That Uber also provides other means for drivers to submit a request for access or data portability does not detract from the fact that drivers must be facilitated in exercising their rights at least in the driver app. The AP is of the opinion that route 2 to the request form in the research report has been wrongly disregarded, as the privacy statement on the website is automatically opened via the driver app and this does not detract from facilitating the submission of a request. The routes described by Uber in its response that have been introduced in the driver app since February 2022 have also been wrongly excluded from the investigation as they fall within the investigated period. This concerns the route modified by Uber: Menu > Help > legal, ethics and compliance > request your personal Uber data > log in or "Submit a privacy inquiry," after which the driver arrives at the form (route 3). Uber has also pointed out the introduction of the Privacy Center, which was launched across Europe on February 17, 2022. The steps via the Privacy Center are as follows: Account > security and privacy > privacy center > Would you like a copy of your personal data? > log in or "Submit a privacy inquiry without an account," after which the driver arrives at the form (route 4). Additionally, Uber points to a fifth route via the Privacy statement.

Regarding the number of steps to be taken in the various routes to reach the request form, the AP considers the following. Recital 59 of the GDPR indicates that when facilitating, consideration must be given to the ease for the data subject in exercising their rights. The AP

2 Schematic representation: up to and including "legal concerns" the same route as route 1 > Privacy notice information > Privacy Notice (select the correct language and jurisdiction) and then one arrives at the privacy statement where a link can be clicked to "submit a privacy inquiry."

3 Recitals 30 to 32 of the research report.

4 See also Guidelines on transparency pursuant to Regulation (EU) 2016/679, paragraph 55.

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supports Uber's position that employing a layered information structure can make it easier for stakeholders to find information under certain circumstances. This is the case with the driver app, which will often be used on smartphones with a limited screen size, and in which relatively much information (on various subjects) is offered. At the same time, a layered information structure should not hinder stakeholders from finding information by requiring unnecessary "clicks." Therefore, a balance must be found between the number of steps to be taken and the amount of information provided per "step." Furthermore, the wording of the steps to be taken must be facilitative, meaning that stakeholders should be guided simply and directly to the desired request form. An adequate wording of the various steps to the form is essential in relation to the duty to facilitate. Placing (the route to) the request form through which drivers can exercise their rights under the GDPR under "Help," "Account and app issues," or "Account" and "Legal concerns" or "Legal, ethics, and compliance" is, in the opinion of the AP, not obvious. A direct placement under, for example, "Privacy" is considered by the AP to be simple and straightforward. Regarding routes 1 and 2, the AP believes that the combination of the number of steps to be taken and their wording creates such a high barrier for stakeholders that Uber does not sufficiently facilitate its drivers. Therefore, in the opinion of the AP, this constitutes a violation of Article 12, paragraph 2, of the GDPR.

However, the AP is of the opinion that this violation has been terminated as of February 17, 2022, due

to the introduction of the Privacy Center, which contains the route 4 described above. By creating a logical place with a clear name, Uber facilitates its drivers in exercising their right to access and data portability.

4.3 Response to access request: form and language

The AP has determined that Uber provides information in response to an access request in a CSV file, without Uber providing information on how the information from such a file can be structured for presentation. Because Uber does not provide the information in an easily accessible form, it violates Article 12, paragraph 1, of the GDPR. Additionally, the AP has determined that Uber violates Article 12, paragraph 1, of the GDPR by providing the guidance notes, in which Uber gives further explanation about the values in the CSV files, only in English. This violation affects not only French drivers but nearly all Uber drivers in Europe.

Form: Uber's viewpoint

Uber states that the GDPR does not specifically prescribe which form meets the standard of 'easily accessible' or on what criteria this can be determined. The explanation in the Guidelines also makes the standard vague, and the AP cannot base a violation of the GDPR solely on the guidelines. According to Uber, the AP acknowledges on its website that the GDPR does not prescribe how information should be provided. CSV is indeed a very suitable file format for the

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provision of information, because, unlike for example in a PDF format, further analysis of the data is possible. Uber also states that the standard should be the 'reasonable and average data subject', and according to this standard, the CSV files provided by Uber are easily accessible. Uber argues that CSV is a universal file format and will generally be automatically opened in software that can display tables by Windows and Apple operating systems. Even if that is not the case, Uber meets the 'easily accessible' standard because the data subject can simply adjust the display of the file, possibly after consulting a search engine for instructions. Even when a CSV file opens in a text file, the information contained therein is still easily accessible. By requiring that Uber provides explanations on how to open a file in many different software applications when providing information in CSV format, the AP introduces a new standard.

Form: assessment

The AP states at the outset that it does not believe that providing information in a CSV file cannot meet the 'easily accessible' standard from Article 12, paragraph 1, GDPR. The Guidelines⁶ indicate the following regarding 'easily accessible': 'The element "easily accessible" means that the data subject does not have to figure out the information themselves; it must be immediately clear to the data subject where and how this information can be found.' In the information provided in response to a request for access, this relates, for example, to the structure in which the information is presented (such as the use of paragraphs).

In a CSV file, values from a table are stored as lines of text. The values are separated by punctuation marks. When the information from a CSV file is displayed as lines of text and thus appears unstructured, the form in which the information is presented is not easily accessible. Data subjects cannot directly abstract the information from this. By using a spreadsheet program, the information from a CSV file can be displayed in table form. A CSV file can be automatically opened in table form in a spreadsheet program, but this is not always the case, depending on settings, for example. The files that Uber has provided to complainants contain a comma as a delimiter between the values. This is not automatically usable as a list delimiter in all cases, for example in countries or regions where a comma is also used as a decimal separator (such as the Netherlands and France). Uber does not provide any

information on how the information from the CSV files can be structured if the file is not automatically opened in table form: the data subject must figure this out themselves⁷. Therefore, Uber has not provided the information in an easily accessible form and has violated Article 12, paragraph 1, GDPR.

6 Guidelines on transparency pursuant to Regulation (EU) 2016/679, paragraph 11

7 Uber has indicated in its opinion that it has added an explanation to the guidance notes on how CSV files can be opened, and will also add a passage about this to the accompanying email with which Uber sends CSV files.

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Language: Uber's Position

By assessing whether the guidance notes are provided in understandable language, the AP (Dutch Data Protection Authority) is, according to Uber, not adhering to the correct standard. According to Article 12, paragraph 1, of the GDPR, the language must be 'clear and simple.' Uber contends that the guidance notes are provided in clear and simple language. A reasonable command of English, rather than a good one, is sufficient to understand the guidance notes. Furthermore, Uber may assume that French drivers have a good command of English, as French taxi drivers (and thus Uber drivers) are required to have a VTC registration. This requires passing an exam that tests, among other things, English at A2 level.

Language: Assessment

Although the research report incorrectly applied the criterion of 'understandable' exclusively, this does not alter the outcome of the assessment. According to Article 12, paragraph 1, GDPR, information must be provided in clear and simple language. This means that when the data controller addresses individuals who speak a different language, a translation in that language must be provided. The requirement to use clear and simple language is closely related to understandability. Uber should not have assumed that French drivers possess sufficient knowledge of English to understand the English guidance notes. The fact that French Uber drivers must pass an exam for their VTC registration, which tests English at A2 level, does not change this, as a poor score in the English component can be compensated by a good score in other exam components. Therefore, passing the exam for a VTC registration does not indicate proficiency in English. Even if this were the case, the AP believes that proficiency in English at A2 level is insufficient to understand the English guidance notes. According to the Common European Framework of Reference for Languages (CEFR), the following standard applies for reading and understanding a text at A2 level: "I can read very short, simple texts. I can find specific, predictable information in simple, everyday texts such as advertisements, brochures, menus, and timetables, and I can understand short, simple personal letters." The guidance notes consist of a document of 26 pages explaining various very specific table values, such as telematics data and various device data. This exceeds the level of a very short and simple text as indicated by the CEFR. In this context, the AP also points to the fine imposed by the Swedish supervisory authority (IMY) on Spotify, among other reasons, for not providing technical log files in the language of the individuals concerned (but solely in English).

8 Guidelines on transparency pursuant to Regulation (EU) 2016/679, paragraph 13

9 See Guidelines on transparency pursuant to Regulation (EU) 2016/679, paragraph 9

10 See Arrêté du 6 avril 2017 relatif aux programmes et à l'évaluation des épreuves des examens d'accès aux professions de conducteur de taxi et de conducteur de voiture de transport avec chauffeur. For the English exam component, at least 4 out of 20 multiple-choice questions must be answered correctly. For all seven exam components combined, a minimum average score of 10 out of 20 must be achieved to pass.

11 At A2 level.

12 Common European Framework of Reference for Languages, Council of Europe

13 Decision of June 12, 2023, reference DI-2019-6696, see

<https://www.imy.se/globalassets/dokument/beslut/2023/beslut-tillsyn-spotify.pdf>

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The data controller must take sufficient measures to ensure that data subjects understand the information. By providing the guidance notes to drivers only in English and not in the local languages, Uber has violated Article 12, paragraph 1, of the GDPR.

Since June 29, 2022, Uber has been offering the guidance notes in multiple languages, including French.

4.4 Privacy Statement: Retention Periods

In its response to a request for access, Uber refers to the privacy statement for the retention periods. The investigation report has established that the information provided by Uber in the privacy statement regarding retention periods is too general, thereby violating Article 13, paragraph 2, under a, and Article 15, paragraph 1, under d, of the GDPR.

Uber's Position

Uber indicates that the explanation from the guidelines that it is insufficient to state that personal data will be retained as long as necessary for the legitimate purpose of processing goes beyond what the GDPR prescribes. This contradicts Article 5, paragraph 1, sub e, of the GDPR, which formulates the criterion for determining the retention period in exactly that way, and the AP cannot base a violation solely on the Guidelines. Furthermore, information must be provided concisely and understandably in accordance with Article 12, paragraph 1, of the GDPR. In the case of Uber as a multinational, there are different retention periods per processing per country, in certain countries per city, per category of data subjects, and those periods are subject to change. Mentioning specific retention periods would lead to an expansion of the privacy statement by dozens to hundreds of pages. Article 13, paragraph 2, under a, of the GDPR also only prescribes that retention periods must be mentioned if possible, which is not the case for Uber for the aforementioned reason. Uber also states that the AP cannot conclude a violation of Article 15, paragraph 1, of the GDPR based on the investigation report, because drivers are provided with information in various ways in response to a request for access, and this has not been included in the report. Additionally, the guidelines against which the AP assesses are not relevant to Article 15 of the GDPR. In the assessment of the version of the privacy statement dated October 15, 2020, the AP incorrectly did not take into account a passage that, according to Uber, meets the requirements against which the AP assesses.

14 Document 23: the privacy statement of October 12, 2019, and the privacy statement of September 1, 2021

15 Guidelines on transparency pursuant to Regulation (EU) 2016/679, page 45: explanation of Article 13, paragraph 2, under a, of the GDPR.

16 For example, drivers, couriers, passengers.

17 Document 23, p. 25: "Following an account deletion request, Uber deletes the user's account and data, unless they must be retained due to legal or regulatory requirements, for purposes of safety, security, and fraud prevention, or because of an issue relating to the user's account such as an outstanding credit or an unresolved claim or dispute. Because we are subject to legal and regulatory requirements relating to drivers and delivery persons, this generally means that we retain their account and data for a minimum of 7 years after a deletion request. For riders and delivery recipients, their data is generally deleted within 90 days of a deletion request, except where retention is necessary for the above reasons."

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Assessment

In the version of the privacy statement dated November 12, 2019, Uber states that personal data (of drivers) will be retained as long as the user has an account. Additionally, Uber may retain information to the extent necessary for safety, security, and fraud prevention purposes, followed by an example. In the version dated September 1, 2021, the information regarding retention periods is summarized to indicate that Uber retains personal data as long as necessary for various purposes, followed by the mention that users (including drivers) can request the deletion of their account, after which the data will be deleted unless it needs to be retained for safety, security, and fraud prevention purposes or account-related matters for a longer period. Since Uber is bound by laws and regulations concerning (among others) drivers, this generally means a retention period of at least seven years for both the account and the data after a request for account deletion, according to Uber's privacy statement.

Pursuant to Article 13, paragraph 2, introductory phrase and under a, GDPR, the data controller must inform the data subject at the time of obtaining personal data about the period for which the personal data will be stored, or, if that is not possible, the criteria for determining that period. The AP observes that Uber does not mention any (concrete) retention periods in either version of the privacy statement. Although Uber mentions a retention period of seven years in the privacy statement dated September 1, 2021, this period is not sufficiently concretely formulated (it only concerns a minimum retention period and applies 'in general,' without clarity on the circumstances under which this period is or is not applicable) and only relates to those cases where a request for account deletion has been made. Uber has indicated in its views, among other things, that there are indeed many different retention periods. The AP notes that these various retention periods are not mentioned in the privacy statement.

In its views, Uber further indicated that, given the many different retention periods, it is not possible to name all concrete retention periods and that therefore it may suffice to mention the criteria for determining the periods. Naming all concrete retention periods would, according to Uber, lead to a privacy statement several pages long, which is contrary to Article 12, paragraph 1, GDPR. The AP agrees that Uber may suffice with mentioning the criteria for determining the retention periods, given the circumstances mentioned, but notes that these are also not sufficiently specified in the privacy statement. Merely stating in general terms that personal data will be retained as long as necessary for certain purposes (as Uber does) cannot be equated with naming criteria for determining the retention period. The obligation to name criteria for determining the retention period, in the opinion of the AP, cannot be interpreted otherwise than that data subjects must be able to determine the retention periods for their personal data, and the information provided by Uber is, in that regard, too general in nature. The AP concludes that Uber has violated Article 13, paragraph 2, introductory phrase and under a, GDPR. The AP finds, contrary to what is stated in the investigation report, insufficient grounds in the findings of the investigation to establish a violation of Article 15, paragraph 1, introductory phrase and under d, GDPR.

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4.5 Privacy Statement: Transfer

In its response to a request for access, Uber refers to the privacy statement for information regarding transfers. The investigation report has established that the privacy statement does not mention the countries outside the EEA to which personal data is transferred and what specific measures have been taken for this, resulting in Uber violating Article 13, paragraph 1, introductory phrase and under f, and Article 15, paragraph 2, GDPR.

Uber's Position

Uber argues that Article 13, paragraph 1, introductory phrase and under f, GDPR does not require the naming of transfer countries. The interpretation of the EDPB in the guidelines that, in accordance with

the principle of propriety, information about transfers must be as meaningful as possible and that this generally means that the third country must be named, is incorrect. The principle of propriety is already filled in, given the introductory phrase, in Article 13, paragraph 2, GDPR (as understood by the AP: exhaustively filled in) and therefore not applicable to the first paragraph of Article 13 GDPR. The EDPB's interpretation contradicts the text and systematics of Article 13, paragraphs 1 and 2, GDPR. Furthermore, the AP cannot base a violation solely on the guidelines. The guidelines also only require that, in general, third countries must be named, and it is impossible for Uber to determine in advance to which specific countries the personal data will be transferred. Uber would then have to include all 72 countries in which it offers its app in the privacy statement, which would not be meaningful or understandable. The same applies to naming all protective measures per country. Uber also believes that, given the shared controller responsibility of Uber B.V. and Uber Technologies Inc., there is no transfer of personal data to third countries in this context, as the processing, according to Article 3, paragraph 1, GDPR, falls within the scope of the GDPR.

Article 15, paragraph 2, GDPR also does not require the naming of transfer countries, and the explanation from the guidelines is not applicable to Article 15. Uber further states that the AP cannot conclude a violation of Article 15, paragraph 2, GDPR based on the investigation report, as drivers are provided with information in various ways in response to a request for access, and this has not been included in the report. The versions of the privacy statement assessed by the AP fully meet the requirements set by Article 13, paragraph 1, introductory phrase and under f, GDPR, particularly because in all versions it was possible to click on 'Standard contractual clauses', after which the standard provisions could be downloaded from a webpage of the European Commission.

Finally, Uber asserts that the AP incorrectly did not include the privacy statement of June 13, 2022, in its assessment.

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Article 13, paragraph 1, introductory phrase and under f, GDPR primarily requires that the controller informs data subjects, where applicable, that the

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The data controller intends to transfer personal data to a third country. The AP observes that Uber, in the various versions of the privacy statement, only mentions that Uber transfers personal data to a third country or third countries. Regarding the applicable safeguards, Article 13, paragraph 1, introductory part and under f, GDPR requires that it must be indicated whether or not there is an adequacy decision from the Commission, or what other appropriate safeguards apply and how a copy of these can be obtained or where they can be consulted. The requirements for information provision set out in this provision are so specific that data subjects must be given access to detailed information about the safeguards used to protect their personal data during transfer. In the guidelines, the EDPB articulates this in such a way that, in accordance with the principle of fairness, the information must be as meaningful as possible. If a data subject wishes to know to which countries their personal data has been transferred, it follows that the relevant transfer countries must be named. In the various versions of the privacy statement, Uber only refers to the different applicable safeguards in general terms and without providing clarity (for example, in the privacy statement of September 1, 2021: "We do so in order to fulfil our agreements with users, such as our Terms of Use, or based on users' prior consent, adequacy decisions for the relevant countries, or other transfer mechanisms as may be available under applicable law, such as the Standard Contractual Clauses") and does not indicate how a copy can be obtained or where they can be consulted. This does not allow data subjects to verify which safeguards may be relevant to them and what these safeguards precisely entail (by being able to consult the applicable safeguards). Uber has thus violated Article 13, paragraph 1, introductory part and under f, GDPR. Contrary to what Uber argues in its opinion, the fact that a further specification of the principle of fairness is provided in paragraph 2 of Article 13 GDPR does not exclude the

applicability of the principle of fairness from Article 5, paragraph 1, under a, GDPR to the first paragraph of Article 13 GDPR.

Regarding Uber's response to a request for access, the AP, unlike what is stated in the investigation report, sees insufficient grounds in the findings of the investigation to establish a violation of Article 15, paragraph 2, GDPR.

4.6 Privacy Statement: Data Portability

The investigation report found that Uber does not explicitly mention the right to data portability in the privacy statement and thus does not comply with Article 13, paragraph 2, introductory part and under b, GDPR.

19 Namely those of May 25, 2018, November 12, 2019, September 1, 2021, and the privacy statement provided with the opinion of June 13, 2022 (file piece 25).

20 Guidelines on transparency pursuant to Regulation (EU) 2016/679, page 44.

21 See also Recital 60 of the GDPR, which mentions the principle of fairness in connection with obligations from the first paragraph of Article 13 GDPR.

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Uber's Position

According to Uber, Article 20, paragraph 1, GDPR indicates that the right to data portability consists of two actions, namely obtaining (from Uber) and transferring (by the data subject). Uber states that the right to data portability is mentioned in the privacy statement, specifically as 'receiving data'. Uber also explains in its privacy statement what the right to data portability entails, deliberately avoiding complex terms (such as data portability). The guidelines²² (which state that a distinction must be made between the right to data portability and other rights) provide only an explanation, and the AP cannot base a violation solely on this. Finally, Uber asserts that the AP incorrectly did not consider the privacy statement of September 1, 2021, in its assessment.

Assessment

Article 13, paragraph 2, introductory phrase and under b, GDPR obliges the data controller to inform the data subject about the right to data portability when providing personal data. The AP observes that Uber does not explicitly mention the right to data portability in the various versions of the privacy statement. The AP does not follow Uber's position that informing about the right to data portability is covered by 'receiving data', as receiving the personal data processed by Uber can also be understood as fulfilling the right of access under Article 15 GDPR. The obligation under Article 13, paragraph 2, introductory phrase and under b, GDPR to inform about the right to data portability naturally implies that this right must be named separately and explicitly. This is also outlined in the guidelines.²⁴ By not naming the right to data portability separately and explicitly, Uber has violated Article 13, paragraph 2, introductory phrase and under b, GDPR.

As of November 3, 2022, Uber does explicitly mention the right to data portability in its privacy statement. The violation has thus been rectified.

5. Administrative Fine

5.1 Uber's Position

In its position, Uber has summarized that the investigation report does not justify remedial or sanction measures. Uber refers to its previously provided position per violation (from the investigation report). Additionally, Uber believes that the *lex certa* principle opposes enforcement, as the provisions against which the AP assesses Uber's actions in the investigation report are often not clear and well-defined, and thus unforeseeable. The imposition of

²² Guidelines on the right to data portability from WP29, pages 15 and 16.

23 Namely those of May 25, 2018, November 12, 2019, and September 1, 2021.

24 See also the Guidelines on the right to data portability from WP29, pages 15 and 16.

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a measure also leads, according to Uber, to disproportionate consequences for Uber in the sense of Article 3:4, second paragraph, of the General Administrative Law Act (Awb), because Uber is constantly engaged in improving its services and has always shown a willingness to cooperate with the AP. Finally, Uber asserts that it has been wrongly denied the opportunity to present its views on the content of a proposed sanction decision. The enforcement intention that Uber has received from the AP is too general and does not allow Uber to express its views on the amount of the fine, the seriousness and extent of the identified violations, and the final justification thereof.

5.1.1 Assessment of the administrative fine

The AP has concluded that Uber has violated Article 12, first paragraph, GDPR by not providing the information in the CSV files in an easily accessible form and also by providing the guidance notes only in English. This occurred during the period from May 25, 2018, to June 29, 2022. Secondly, Uber has violated Article 12, second paragraph, GDPR by not making the digital form through which drivers can exercise their right of access and data portability easily accessible in the driver app. This violation occurred during the period from May 25, 2018, to February 17, 2022.

Thirdly, the information provided by Uber regarding retention periods in the privacy statement is too general in nature, resulting in a violation of Article 13, second paragraph, introductory part and under a, GDPR. Fourthly, Uber has violated Article 13, first paragraph, introductory part and under f, GDPR because the information provided about data transfers in the privacy statement is incomplete. The AP establishes this for the period from May 25, 2018, to the date of the investigation report (June 30, 2022).

Finally, Uber has not explicitly mentioned the right to data portability in its privacy statement, leading to a violation of Article 13, second paragraph, introductory part and under b, GDPR. This occurred from May 25, 2018, to November 3, 2022.

The AP sees reason to exercise its authority under Article 58, second paragraph, introductory part and under i, in conjunction with Article 83 GDPR and Article 14, third paragraph, Implementation Act GDPR, to impose an administrative fine on Uber (Uber Technologies Inc. and Uber B.V. together).

5.1.2 Invocation of the lex certa principle

Regarding Uber's invocation of the lex certa principle, which is also enshrined in Article 49 of the Charter of Fundamental Rights of the EU, the AP considers the following. As the Administrative Jurisdiction Division of the Council of State has repeatedly stated, the lex certa principle requires the legislator to describe prohibited conduct as clearly as possible with a view to legal certainty. It should not be overlooked that the legislator sometimes

25 See, among others, the rulings of July 9, 2014, ECLI:NL:RVS:2014:2493, January 16, 2019, ECLI:NL:RVS:2019:109.

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with a certain vagueness, consisting of the use of general terms, describes prohibited behaviors to prevent behaviors that are punishable from falling outside the scope of that description. This vagueness may be unavoidable, as it is not always foreseeable in what manner the interests to be

protected will be violated in the future, and because, if this is foreseeable, the descriptions of prohibited behaviors would need to be refined to such an extent that clarity is lost, thereby harming the importance of the general clarity of legislation. In other words, the *lex certa* principle requires the legislator to describe the prohibited behaviors as clearly as possible with a view to legal certainty.²⁶

Uber's argument regarding the *lex certa* principle focuses on the violation identified by the AP concerning the accessibility of the request form for access requests and the form of information provision in relation to the CSV files. The AP is of the opinion that a "readily accessible form" in the sense of Article 12, paragraph 1, GDPR entails that information provided in response to an access request must be able to be presented in a structured manner in a CSV file (when the file does not open automatically), without the data subject having to figure out how to do this themselves. There is no conflict with the *lex certa* principle because the text of the provision is sufficiently clear. This is even more the case since the Guidelines²⁷ indicate that the element "readily accessible" means that the data subject does not have to figure out this information themselves; it must be immediately clear to the data subject where and how this information can be found. The fact that the term "readily accessible" in Article 12, paragraph 1, GDPR requires interpretation based on specific circumstances does not mean that an administrative fine imposed for violation of this provision is in conflict with the *lex certa* principle. Regarding the violation concerning the accessibility of the request form for access requests, the AP also finds no conflict with the *lex certa* principle. Given the text of Article 12, paragraph 2, of the GDPR, the data controller must facilitate the exercise of a data subject's right to access their personal data. In the opinion of the AP, this standard is sufficiently clear in that measures by a data controller that create barriers to the exercise of that right are in conflict with it. By the combination of the number of steps to be taken and the wording thereof, Uber imposes such a high barrier for data subjects that Uber insufficiently facilitates its drivers.

5.1.3 Opportunity to provide a statement

Regarding Uber's position that it was wrongly not given the opportunity to present a statement on the amount of the fine, the seriousness, and the extent of the identified violations and the final justification, the AP considers the following. Neither Article 4:8 nor Article 5:50 of the General Administrative Law Act (Awb) (read in conjunction with Articles 5:48 and 5:53 Awb) nor any other provision obliges the AP to comment on these aspects at the time of the intention to impose an administrative fine.²⁸ Therefore, Uber was not wrongly denied the opportunity to provide its statement on this matter. What is mentioned in the statement can contribute to the AP's decision to proceed to

26 Judgment of October 26, 2022, ECLI:NL:RVS:2022:3077.

27 Guidelines on transparency in accordance with Regulation (EU) 2016/679, paragraph 11

28 CBb May 7, 2019, ECLI:NL:CBB:2019:177

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the imposition of an administrative fine, after which the AP determines the amount of the fine based on all relevant facts and circumstances known to it at that time. For this reason, the AP has not commented on the aspects mentioned by Uber in its intention.

5.2 Systematics for determining the fine amount

The EDPB approved the adoption of the Guidelines 04/2022 on the calculation of administrative fines under the GDPR (hereinafter: the Guidelines) during its plenary meeting on May 24, 2023.²⁹ The Guidelines are directly applicable, as they do not provide for transitional provisions for procedures that were already ongoing at the time of approval of the Guidelines. The AP will therefore apply these Guidelines to this case.³⁰

The Guidelines describe a methodology in which the following steps are sequentially considered:

1. which and how many actions and violations are under assessment;
2. what starting amount serves as the basis for calculating the fine for this;
3. whether there are mitigating or aggravating circumstances that necessitate an adjustment of the amount from step 2;
4. what maximum amounts apply for the violations and whether any increases from the previous step do not exceed this amount;
5. whether the final amount of the calculated fine meets the requirements of effectiveness, deterrence, and proportionality, and if necessary is adjusted accordingly.

These steps will be sequentially addressed below.

5.3 Calculation of the starting amount

5.3.1 Step 1: Establishing actions and determining violations

To determine the starting amount of the fine, it must first be assessed whether there is one or more sanctionable behaviors, as described in the Guidelines.

The AP has first established that Uber, in response to a request for access from a data subject, did not provide information on how the CSV file can be opened (how the information from the provided CSV file can be structured). The AP has also established that Uber did not provide the information about the data in the CSV file (the guidance notes) in the language of the data subjects, but only in English. As concluded above,

29 There is currently no Dutch translation available of the Guidelines. The Guidelines can be consulted at

30 See also

<https://www.autoriteitpersoonsgegevens.nl/actueel/nieuw-boetebeleid-voor-overtredingen-avg>.

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both points are in violation of the obligation that rests on Uber to inform the data subjects in a comprehensible and easily accessible form and in clear and simple language, as laid down in Article 12, paragraph 1, of the GDPR. Furthermore, the AP has also established a violation of paragraph 2 of Article 12, namely that the digital form through which drivers can exercise their right of access and data portability is not easily accessible enough in the driver app.

The AP further found that Uber's privacy statement fell short on three points: i) the information provided by Uber regarding retention periods was too general to enable data subjects to determine the retention periods for their personal data; ii) the information did not mention the various safeguards applicable to international transfers of personal data; and iii) the right to data portability was not separately and explicitly mentioned. These points are in violation of Article 13, paragraph 1, introductory part and under f, and paragraph 2, introductory part and under a and b, of the GDPR.

In the opinion of the AP, this case involves two distinguishable sanctionable behaviors ("plurality of action"). The AP first considers that the behaviors occur at different times. The use of an inadequate privacy statement occurs continuously after its publication, while the information in response to an inquiry request is only provided after a driver has made an access request. Secondly, the behaviors do not necessarily target the same group of data subjects. Not every driver who consults the privacy statement also makes an access request and vice versa. Thirdly (and finally), the AP considers that the violations can exist independently of each other and have no causal connection with one another. The fact that they are currently addressed together in one decision is due to them coming to the attention of the AP simultaneously.

Since Uber has committed distinguishable sanctionable behaviors, both behaviors can be fined separately. The amounts in the following steps must therefore be determined for both violations.

****5.3.2 Step 2: Determine starting amount****

As described in the Guidelines, the starting amount of the fine must then be determined. This starting amount serves as the basis for further calculation in later steps, taking into account all relevant facts and circumstances. The Guidelines state that the starting amount is determined based on three elements: i) the categorization of the violations according to Article 83, paragraphs 4 to 6, of the GDPR; ii) the severity of the violation; and iii) the turnover of the company. The following discusses all three elements.

****Ad i) Categorization of the violations according to Article 83, paragraphs 4 to 6, of the GDPR****

As stated in the Guidelines, almost all obligations of the data controller are categorized in the provisions of Article 83, paragraphs 4 to 6, of the GDPR. The GDPR makes

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distinction between two types of violations. On the one hand, the violations that are subject to sanctions under Article 83, paragraph 4, of the GDPR, for which a maximum fine of €10 million applies (or in the case of an undertaking, 2% of the annual turnover, if that is higher); on the other hand, the violations that are subject to sanctions under Article 83, paragraphs 5 and 6, of the GDPR, for which a maximum fine of €20 million applies (or in the case of an undertaking, 4% of the annual turnover, if that is higher). With this distinction, the legislator has provided an initial indication in abstracto of the severity of the violation: the more serious the violation, the higher the fine.

For the currently presented violations of Article 12, paragraphs 1 and 2, Article 13, paragraph 2, introductory part and under a, Article 13, paragraph 1, introductory part and under f, and Article 13, paragraph 2, introductory part and under b, GDPR, an administrative fine of up to €20,000,000.00 (or in the case of an undertaking, 4% of the global annual turnover, if that is higher) may be imposed. This categorization indicates that the violations of these provisions are considered serious by the legislator.

Ad ii) Severity of the violations

To determine the severity of the violation, the Guidelines³¹ must be taken into account, considering the nature, severity, and duration of the violation, as well as the intentional or negligent nature of the violation and the categories of personal data involved.

Regarding the nature of the violations, the AP notes that the data controller must provide the data subject with the information necessary to ensure proper and transparent processing in relation to the data subject, taking into account the specific circumstances and the context in which the personal data are processed.³² The right of access, as well as the right to receive understandable and easily accessible information about the processing of personal data, is necessary to enable data subjects to exercise their other rights under the GDPR. Providing transparent information in the sense of Article 12, paragraph 1, GDPR is therefore of great importance. When the rights of data subjects are not respected, this affects the right that data subjects have to the respect for their private life and the protection of their personal data. The right of access and the right to receive understandable and easily accessible information about the processing of personal data may also be important for data subjects in asserting or exercising other rights than those under the GDPR, for example in civil proceedings. For this reason, it is also important that data subjects can exercise the aforementioned rights under the GDPR and that no unreasonable barriers are erected for this purpose.

In assessing the severity of the violations, the number of (potential) data subjects is primarily taken into account. The AP is aware that approximately 120,000 Uber drivers were active in Europe during the period of the violations.

³¹ Guidelines 04/2022 on the calculation of administrative fines under the GDPR.

³² Recital 60 of the GDPR.

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Secondly, the AP takes into account in its assessment of the severity of the violation that although Uber has committed the violations of the GDPR mentioned above, it is not the case that Uber has completely failed to comply with its obligations under Article 12, paragraphs one and two, Article 13, paragraph two, introductory part and under a, Article 13, paragraph one, introductory part and under f, and Article 13, paragraph two, introductory part and under b, GDPR. For instance, while Uber did not fully inform data subjects in its privacy statement about the retention periods, it did provide some information on this matter. The same applies to the information about data transfers in the privacy statement: although the AP has identified a violation in this regard, it cannot be said that Uber has entirely failed to inform about data transfers. Regarding Uber's response to a request for access, it has not been established that the requirements of Article 12, paragraph one, GDPR have not been met at all; rather, the violation is limited to the language of the guidance notes and the accessibility of the CSV files. Furthermore, it should be noted that this violation will not necessarily have consequences for every driver who requested access. The English language of the guidance notes will not lead to less or no understanding of the content for every driver, as there are also some member states where English is the working language. Additionally, there will be drivers for whom the CSV files open automatically in table format. Moreover, the AP has not found evidence that the violations have caused (substantial) harm to the data subjects. Furthermore, regarding the violation of Article 12, paragraph two, of the GDPR, it is not the case that Uber has made it entirely impossible for data subjects to exercise their right of access and data portability. In the opinion of the AP, there is negligence in the commission of the violations. The AP weighs that element as "neutral." With respect to the categories of personal data involved, the AP considers that it has been established that there is processing of location data, which is sensitive personal data. Furthermore, the AP takes into account that it may be a challenge for Uber to provide comprehensive information about the rights of data subjects in a manner that is understandable to them, which brings compromises in assessing how the information can best be presented. The investigation and the information provided by Uber during the consultation phase also show that Uber has taken many measures to improve and continue improving the procedures for data subjects.

The duration of the violations has been established above for a considerable period, namely from May 25, 2018, to February 17, 2022, June 29, 2022, and November 3, 2022.

Ad iii) Revenue of the company

The Guidelines stipulate that from the perspective of fairness, the starting amount of the fine must be related to the size of the company. The size of the company is determined based on its revenue. For a small company, with a revenue of up to €2 million, the starting amount is generally limited to 0.2% to 0.4% of the actual starting amount, and the starting amount increases as the company's revenue increases. If a company has a revenue of more than €500 million, the amount of the fine is determined as a percentage of the annual revenue of the company.

33 See in this regard, among others, CJEU May 4, 2023, ECLI:EU:C:2023:376.

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company.³⁴ As a result, the size and revenue of the company have already been factored into the amount of the fine, so the starting amount does not need to be adjusted on that basis.

As stated in Recital 150 of the GDPR, when imposing a fine on a company, the "company" must be viewed as a company in accordance with Articles 101 and 102 of the Treaty on the Functioning of the

European Union. Established case law from the Court of Justice of the European Union indicates that a company is "any entity engaged in an economic activity, regardless of its legal form and the way it is financed." Therefore, it concerns the economic unit of the company and not the legal entities within it. Different companies or entities within the same economic unit can thus together constitute a company in the sense of the aforementioned provisions.

Uber B.V. is indirectly a wholly-owned subsidiary of Uber Technologies Inc. Therefore, for the application of Article 83 of the GDPR, they must be considered as the same company.

As mentioned in the Guidelines, revenue can be determined based on the annual accounts of the company for the previous financial year. According to Article 83, paragraphs four to six, of the GDPR, the global revenue for the previous financial year is taken into account. Since this decision was made in 2023, the financial year 2022 is used.

Uber Technologies Inc. has published the annual accounts for 2022 on its website.³⁵ Page 74 contains a consolidated overview of the company. It can be inferred that the global revenue of the company for 2022 amounts to \$31.877 billion. This corresponds to €29.750 billion.³⁶

Determining the starting amount

According to Article 83, paragraph five, of the GDPR, the maximum fine is 4% of the annual revenue. The annual revenue amounts, as stated, to €29.750 billion, so the maximum fine for each of the violations is €1.19 billion.

Considering what has been discussed under i) and ii), the AP is of the opinion that the level of seriousness of the violations should be classified as "low." According to the Guidelines, for violations with a low level of seriousness, the starting amount should be determined at a point between 0 and 10% of the maximum fine. The general rule is that the more serious the violation is within its own category, the higher the starting amount will be.

The AP believes that, given the described circumstances, the violations in question are of minor seriousness in themselves. Therefore, the starting point for calculating the fine should be relatively low compared to the starting amount. Taking all of the above into account, the AP sets the starting amount in this case at €5 million for each of the violations (€10 million in total). This corresponds to 0.42% of the applicable maximum fine.

5.4 Assessment of mitigating or aggravating circumstances

5.4.1 Step 3: Assessing relevant circumstances

As stated in the Guidelines, it must then be considered whether the circumstances of the case warrant setting the fine higher or lower than the previously determined starting amount. The circumstances to be taken into account are listed in Article 83, paragraph two, introductory part, and under a to k, of the GDPR. The circumstances mentioned in that provision must each be considered only once. In the previous step, account has already been taken of the nature, gravity, and duration of the violation (part a), the intentional or negligent nature of the infringement (part b), and the categories of personal data (part g). This leaves parts c to f and h to k.

The only applicable circumstance is the manner in which the AP became aware of the violation, specifically whether, and if so to what extent, the data controller reported the violation (part h). In this case, Uber did not report the violations itself, but they came to the attention of the AP through complaints. However, according to the Guidelines, this is assessed as "neutral" and therefore has no impact on the amount of the fine to be imposed.

The other circumstances are not applicable in this case because the circumstances to which they refer do not occur in this instance.

5.5 Determining the amount of the fine

In paragraph 5.3.2, a starting amount of €5 million has been determined for each of the violations. In paragraph 5.4.1, it has been concluded that the only circumstance that can be further considered must

be assessed as neutral. The conclusion is therefore that the fine should be set at €5 million for each of the two violations (€10 million in total).

5.5.1 Step 4: Checking the maximum amounts applicable to the violations

As stated, a maximum fine of 4% of the global annual revenue of the company applies to the identified violations, also considering Uber's revenue. Given Uber's revenue (€29.750 billion), the legal maximum of the fine to be imposed is therefore €1.19 billion per violation.

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The fine amount for the identified violations has been set at €5 million per violation. This is well below the legal maximum, so there is no exceeding of that limit.

5.5.2 Step 5: Assessment of the requirements of effectiveness, proportionality, and deterrence

Finally, the AP assesses whether the fine is effective, proportional, and deterrent. Based on Article 49, third paragraph, of the Charter of Fundamental Rights of the EU and Articles 3:4 and 5:46, second paragraph, of the General Administrative Law Act (Awb), the administrative fine, given the circumstances of the specific case, must not lead to an disproportionate outcome.

According to Article 83, fifth paragraph, introductory phrase and under b, of the General Data Protection Regulation (GDPR), the AP may impose an administrative fine for the violations described above. As outlined in the Guidelines, the imposition of a fine can be considered effective if it achieves the purpose for which it was imposed. That purpose may lie in, on the one hand, punishing unlawful conduct and, on the other hand, promoting compliance with applicable regulations. Given the nature, severity, and duration of the infringement, as well as the other factors from Article 83, second paragraph, GDPR, as assessed in paragraphs 5.3.2 and 5.4 of this decision, the AP is of the opinion that the imposition of an administrative fine under these circumstances achieves both goals and is therefore effective and deterrent. The amount of the administrative fine, which has also been determined based on Uber's revenue, is also considered effective and deterrent by the AP.

The AP considers the fine to be proportional in light of the seriousness of the violation and the size of the company. Uber has indicated in its opinion that the imposition of a measure leads to disproportionate consequences for Uber, as Uber is constantly working to improve its services and has always shown a willingness to cooperate with the AP. The AP sees no reason to consider the fine disproportionate in this regard. Compliance with the provisions of the GDPR and cooperation with the AP in exercising its powers are, after all, legally required. In the opinion of the AP, there have not been any sufficiently special circumstances in this regard that would make the fine disproportionate for the reasons mentioned by Uber.

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6. Decision

Fine

The AP imposes an administrative fine of €10,000,000.00 (say: ten million euros) on Uber B.V. and Uber Technologies Inc. jointly, for violating Articles 12, first and second paragraphs, and Article 13, first paragraph, introductory phrase and under f, and second paragraph, introductory phrase and under a and b, of the GDPR.³⁷

Yours sincerely,

Authority for Personal Data,

Mr. A. Wolfsen
Chairman

Remedies clause

If you disagree with this decision, you may submit a notice of objection to the Authority for Personal Data within six weeks of the date of dispatch of the decision, either digitally or on paper. Pursuant to Article 38 of the Implementation Act GDPR, the submission of a notice of objection suspends the effect of the decision to impose the administrative fine. Please include at least the following in your notice of objection:

- your name and address;
- the date of your notice of objection;
- the reference mentioned in this letter (case number), or attach a copy of this decision;
- the reason(s) why you disagree with this decision;
- your signature.

You can submit the notice of objection digitally via the website. Go to www.autoriteitpersoonsgegevens.nl, and click at the bottom of the page, under the heading "Contact," on the link "Objecting to a decision of the AP." From there, use the form "Submitting a notice of objection."

Prefer to send the notice of objection by post? You can do so at the following address:

Authority for Personal Data
Directorate of Legal Affairs & Legislative Advice, Department of Objections
P.O. Box 93374
2509 AJ THE HAGUE

37 The AP will refer the claim to the Central Judicial Collection Agency (CJIB).